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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW, JUSTICE, HUMAN RIGHTS AND
PARLIAMENTARY AFFAIRS

(Law, Justice and Human Rights Division)

Islamabad, the 25th September, 2004

No. F. 2(1)/2004-Pub.—The following Ordinance promulgated by the President is hereby published for general information :—

ORDINANCE No. II OF 2004

AN

ORDINANCE

further to amend the Federal Employees Benevolent Fund and Group Insurance Act, 1969.

WHEREAS it is expedient further to amend the Federal Employees Benevolent Fund and Group Insurance Act, 1969 (II of 1969), for the purposes hereinafter appearing;

(105)

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the Federal Employees Benevolent Fund and Group Insurance (Amendment) Ordinance, 2004.

(2) It shall come into force at once and shall be deemed to have taken effect on and from the first day of December, 2003.

2. **Amendment of section 2, Act II of 1969.**—In the Federal Employees Benevolent Fund and Group Insurance Act, 1969 (II of 1969), hereinafter referred to as the said Act, in section 2,—

(1) in clause (4)—

(i) in sub-clause (c) at the end, after semicolon, the word “or” shall be added; and

(ii) after sub-clause (c) amended as aforesaid, the following new sub-clause shall be added, namely:—

4. [cc] [(+)] the contract, ad-hoc and contingent paid employees;”.

(2) in clause (5), in sub-clause (a), the word “and” at the end shall be omitted and for sub-clause (b), the following shall be substituted, namely:—

“(b) the natural sons upto the age of twenty-one years, provided they are not handicapped or mentally retarded; and

(c) parents, minor brothers, unmarried, divorced or widowed daughters and sisters of the employee wholly dependent upon him.”.

3. **Amendment of section 12, Act II of 1969.**—In the said Act, in section 12, in sub-section (1),—

(i) in clause (a), the word “and” at the end shall be omitted;

1. corrected by corrigenda dt 1-10-04.

- (ii) in clause (b), after the semicolon the word “and” shall be added; and
- (iii) after clause (b) amended as aforesaid, the following new clause shall be inserted, namely:—

“(c) on or after the first day of December 2003, shall be liable to pay to the Benevolent Fund a monthly subscription at the rates specified in column (3) of the Third Schedule;”.

4. **Amendment of section 13, Act II of 1969.**—In the said Act, in section 13, after sub-section (2), the following new sub-sections shall be added, namely:—

- “(3) Where, on or after the first day of December 2003, an employee is declared by the prescribed medical authority to have been completely incapacitated physically or mentally to discharge the duties of his employment and for that reason is retired or removed from service, he shall be entitled to receive for life such benevolent grant from the Benevolent Fund as specified in column (4) of the Third Schedule; or where the employee dies during the continuance of his employment, or during retirement before attaining the age of seventy years, his spouse shall be entitled to receive for life such benevolent grant from the Benevolent Fund as specified in column (4) of the Third Schedule:

Provided that, if the deceased employee has no spouse or the spouse dies, other members of his family shall be entitled to receive benevolent grant from Benevolent Fund as prescribed for a period of fifteen years or upto the date the deceased employee would have attained the age of seventy years, whichever is earlier :

Provided further that the said period of fifteen years shall be reckoned from the date from which the deceased employee or, as the case may be, the spouse became eligible for such grant.

- (4) The beneficiaries whose grant period has not expired on 30th day of November, 2003 shall be entitled to an increase equal to twenty percent of the grant sanctioned under the rules with effect from the first day of December, 2003, for the remaining period of the grant.”.

5. **Addition of new Schedule, Act II of 1969.**—In the said Act, after the Second Schedule, the following new Schedule shall be added, namely :—

"THE THIRD SCHEDULE

[See sections 12(1) and 13 (3)]

The rates of subscriptions to the Benevolent Fund and the amount of monthly benevolent grant payable under section 13(3) out of such fund applicable on and after the first day of December, 2003.

Sl. No.	Monthly Pay (Rs.)	Rate of monthly Subscription (Rs.)	Rate of monthly Benevolent grant (Rs.)
(1)	(2)	(3)	(4)
1.	Upto - 2000	39	880
2.	2001 - 2100	41	920
3.	2101 - 2200	43	960
4.	2201 - 2300	45	1000
5.	2301 - 2400	47	1040
6.	2401 - 2500	49	1080
7.	2501 - 2600	51	1120
8.	2601 - 2700	53	1160
9.	2701 - 2800	55	1200
10.	2801 - 2900	57	1240
11.	2901 - 3000	59	1280
12.	3001 - 3100	61	1320
13.	3101 - 3200	63	1360
14.	3201 - 3300	65	1400
15.	3301 - 3400	67	1440
16.	3401 - 3500	69	1480

(1)	(2)	(3)	(4)
17.	3501 - 3600	71	1520
18.	3601 - 3700	73	1560
19.	3701 - 3800	75	1600
20.	3801 - 3900	77	1640
21.	3901 - 4000	79	1680
22.	4001 - 4100	81	1720
23.	4101 - 4200	83	1760
24.	4201 - 4300	85	1800
25.	4301 - 4400	87	1840
26.	4401 - 4500	89	1880
27.	4501 - 4600	91	1920
28.	4601 - 4700	93	1960
29.	4701 - 4800	95	2000
30.	4801 - 4900	97	2040
31.	4901 - 5000	99	2080
32.	5001 - 5500	105	2200
33.	5501 - 6000	115	2400
34.	6001 - 6500	125	2600
35.	6501 - 7000	135	2800
36.	7001 - 7500	145	3000
37.	7501 - 8000	155	3200
38.	8001 - 8500	155	3400

(1)	(2)	(3)	(4)
39.	8501 - 9000	155	3600
40.	9001 - 9500	155	3800
41.	9501 and above.	155	4000."

GENERAL,
PERVEZ MUSHARRAF,
President.

MR. JUSTICE,
MANSOOR AHMED,
Secretary.